

United States District Court for the District of South Carolina

Piedmont Booksellers Guild v. City of Norvale

Case No. SYN-DSC-26-CV-0107 · Declaration of Omar Finch, Fair Logistics Organizer

Filed January 7, 2026

I, Omar Finch, declare from personal knowledge as follows. I have volunteered as the Piedmont Booksellers Guild's logistics organizer since 2020. I prepare site diagrams, assign seller locations, coordinate setup and removal, mark pedestrian and emergency routes, and serve as a contact for City employees during most Cedar Commons fairs. I am not responsible for selecting the viewpoints or subjects of authors. My work concerns the physical operation of each event.

Before a fair, I obtain the seller list and the expected presentation schedule. I place larger tents along the lawn perimeter, keep the library walk open, and locate the reading area away from the service entrance. I send vendors an unloading window and ask them to remove vehicles before public hours. On the morning of an event, I inspect the route between the service entrance and central walk. If a box, chair, or sign narrows it, I direct the vendor to move the item.

The Guild's six announced 2026 dates are February 14, April 11, June 13, August 8, October 10, and December 12. My preliminary layouts assume the historical range of eighteen to twenty-eight sellers and four to seven author sessions. I revise those diagrams when a vendor withdraws, weather affects tent placement, or the City identifies another site condition. A change in the author roster does not ordinarily change the layout unless it also changes the expected audience or presentation format.

Site Characteristics and Crowd Movement

Cedar Commons is bordered by Laurel Street on one side and Market Lane on another. The public library walk enters near the fountain. A service entrance used by maintenance and emergency vehicles lies near the reading area we have used in recent years. The lawn can hold the normal fair layout, but chair placement must leave room for people moving between tables and for anyone using a wheelchair or mobility device.

Crowds are not constant throughout a fair. There is a setup period, a gradual arrival, several temporary increases around scheduled readings, and a departure period. Most author programs last twenty to thirty minutes, followed by questions. Some listeners remain seated; others stand at the edge or browse while listening. When a program ends, a portion of the group may move toward an author's signing table. I can reduce conflict by separating the signing point from the narrow fountain path.

The presentation time is useful logistical information. A short description such as a reading or panel may also tell me whether chairs, a demonstration table, or electrical equipment is involved. The particular opinion or plot an author will discuss does not affect my plan. Compensation likewise does not tell me how many listeners will attend. In my experience, local familiarity, weather, competing activities, and publicity are better crowd indicators. I therefore use the schedule together with attendance estimates rather than treating speaker payment as a safety measure.

Event and Incident Experience

I have not observed violence at a Guild event. I was present when an attendee felt faint during warm weather. We cleared space, contacted assistance, and kept the service route open. I learned of another minor medical response involving a fall near a curb, although I did not see the fall occur. Neither event required closing the fair. We later emphasized water availability and unobstructed curb access.

There has been routine congestion. A vendor sometimes arrives after the unloading window, a driver pauses on Market Lane, or customers gather where a path narrows. On several occasions, I or a City employee asked someone to relocate a vehicle or display. Those instructions were followed. I have not seen a condition caused by disagreement with an author's message. I also cannot rule out the possibility that a larger event, road work, or simultaneous reservation would require more controls on a particular date.

I maintain simple after-event notes, but they are not continuous pedestrian counts. Dispatch summaries capture calls for service, not every preventive action by staff. For those reasons, I would not describe the history as proof that planning is unnecessary. It does show that ordinary physical measures have managed the conditions encountered so far. If the City identifies a measured aisle problem, staffing conflict, or traffic condition, I can usually revise the plan without canceling a literary presentation.

Preparation Under the New Ordinance

The forty-five-day filing rule requires the Guild to submit event information before all of my inputs are final. Seller assignments often change close to a fair, but those changes can be accommodated within the approved footprint. Author schedules also change. Under the new form, a paid replacement must be reported with a name, topic, and time, and staff decides whether the change can be reviewed. That leaves me unable to tell the program team in advance which late changes will be considered operationally insignificant.

For the February 14 date, I prepared a preliminary plan using the same general footprint as prior winter fairs. The plan preserved the service entrance, separated unloading from public hours, and placed the reading area away from the bus boarding space. At the time the forty-five-day point passed, the Guild's author roster was not complete. From a logistics perspective, substituting one twenty-minute reading for another at the same location and time would not alter my diagram. A new format or materially larger audience might require reassessment.

I understand why staff wants a stable schedule before assigning resources. My concern is the absence of a dependable distinction between a change that truly affects those assignments and one that changes only the speaker. The additional \$45 charge also does not purchase a specific traffic post or physical adjustment that I can identify. I can plan more effectively when a condition states the observed risk and the measure required to address it.

Practical Measures and Verification

Several measures can address the conditions I have observed: a fixed vendor unloading period; temporary cones along Market Lane; an unbroken emergency corridor; accessible spacing between tables; signs directing listeners away from the fountain bottleneck; and a signing area separate from the reading chairs. If another event or construction affects a date, a revised entrance or presentation location may be appropriate. I would work with City personnel on any such documented issue.

I do not ask the Court to decide that my preferred diagram must be accepted. Site officials may have information I do not possess, including transit work or staffing constraints. I ask only that my experience be considered when evaluating whether paid status, a topic line, and a per-person charge are necessary for these recurring fairs. The Guild's history contains real but manageable congestion and two minor medical responses; it does not contain violence or a safety episode linked to an author's subject.

The approaching dates require decisions about layouts, invitations, and vendor instructions. If an author is omitted because confirmation came late, I cannot fix that loss through a later diagram. If an author addition changes expected attendance or equipment, I can provide revised facts for review. In my experience, that operational distinction is workable and more informative than the existence of an honorarium alone.

I affirm under penalty of perjury that the facts stated above are true and correct. Dated January 7, 2026, at Norvale, South Carolina.